



SPONSOR: Rep. Gorman & Sen. Sturgeon
Reps. Morrison, Romer, Ross Levin, Snyder-Hall,
Lambert, Berry; Sens. Lockman, Pinkney, Cruce

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 150

AN ACT AMENDING TITLE 10 OF THE DELAWARE CODE RELATING TO CIVIL ARRESTS.

1 WHEREAS, the threat that persons may be subject to civil arrest while in Delaware's courthouses or attending
2 judicial proceedings is a threat to the proper functioning of Delaware's government and to the rights enjoyed by all
3 Delawareans; and

4 WHEREAS, the United States Supreme Court has recognized that "the unhindered and untrammelled functioning
5 of our courts is part of the very foundation of our constitutional democracy," and that a state may therefore adopt measures
6 necessary and appropriate to safeguard the administration of justice by its courts. United States v. Grace, 461 U.S. 171, 178
7 (1983); and

8 WHEREAS, accordingly, Delaware may regulate entry and access to the courts and activity on courthouse
9 premises and vicinities that threaten the fair and nondiscriminatory administration of justice or the openness of courts; and

10 WHEREAS, public access to Delaware's courts also enhances the truth-finding function of judicial proceedings,
11 safeguarding their integrity; and

12 WHEREAS, protecting persons from civil arrest while in Delaware's courthouses or attending judicial
13 proceedings is necessary to preserve the vital role served by public access to courts.

14 NOW, THEREFORE:

15 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

16 Section 1. Amend Part V, Title 10 of the Delaware Code by making deletions as shown by strike through and
17 insertions as shown by underline as follows:

18 Chapter 82. Civil Arrests

19 § 8201. Definitions.

20 As used in this chapter:

21 (1) "Civil arrest" means an arrest for matters not related to criminal law enforcement or other judicial order
22 authorizing such arrest.

23 (2) "Courthouse" means any building or facility where State judicial proceedings are conducted or where
24 judicial officers or employees are housed.

25 § 8202. Prohibition on civil arrest.

26 (a) No person may be subject to civil arrest while:

27 (1) Going to, remaining at, or returning from a courthouse for matters related to a judicial proceeding.

28 (2) Participating in or attending a judicial proceeding as a party, witness, attorney, or observer.

29 (b) This prohibition applies to the grounds, parking areas, and immediate surroundings of courthouses.

30 (c) This section does not apply to arrests made pursuant to a judicial order authorizing such arrest.

31 § 8203. Enforcement and Remedies.

32 (a) A judicial officer has the power to prohibit activities that threaten access to state courthouses and court
33 proceedings, and to prohibit interruption of judicial administration, including protecting the privilege from civil arrest at
34 courthouses and court proceedings.

35 (b) A person arrested or detained in violation of this chapter may seek a writ of habeas corpus.

36 (c) A person who knowingly violates this chapter may be liable for damages in a civil action for false
37 imprisonment.

38 (d) Courts may award attorney's fees and costs to prevailing parties in actions brought under this section.

SYNOPSIS

This bill prohibits civil arrests from being made in courthouses without a judicial warrant.